Agreement
Real Property Exchange
Between
Vancouver Public Schools and the City of Vancouver

This Real Property Exchange Agreement (hereinafter "Agreement") is made and entered into this _____ day of December, 2020, by and between Vancouver School District #37 (hereinafter "District"), Clark County, Washington, a public school district, and the City of Vancouver, a municipal corporation (hereinafter "City"), collectively referred to as the "Parties", for and in consideration of the mutual promises and performances set forth herein.

RECITALS

The City of Vancouver is the owner of Shumway Park, approximately nineteen thousand three hundred one (19,301) square feet, situated in the City of Vancouver on Parcel #16510000 and legally described in **Exhibit A**, (attached hereto and incorporated herein by reference and referred to as "Parcel A").

The District is the owner of the Vancouver School of Arts and Academics (hereinafter "VSAA") campus, comprised of approximately four hundred nineteen thousand four hundred eighty three (419,483) square feet, situated in the City of Vancouver, on parcel #11254000 and #16525000 and legally described in **Exhibit A** (attached hereto and incorporated herein by reference and referred to as "Parcel B").

In June 2000, the Parties entered into an interlocal agreement providing for Shumway Park to be jointly maintained and developed with unused open space at VSAA for the mutual benefit of the City, the District and the neighborhood.

The District proposes a site reconfiguration and a facility expansion of VSAA, located at 3101 Main Street, Vancouver, Washington to encompass a portion of Shumway Park to accommodate increased parking needs. In exchange, the City will acquire a portion of District's Parcel B.

The City and the District are exchanging an area of **Exhibit A** at a 1:1 ratio. The exchanged area of the City Parcel A is three thousand four hundred twenty-three (3,423) square feet, and the exchanged area of the District Parcel B is three thousand four hundred twenty-three (3,423) square feet.

Based on the foregoing, and in consideration of the promises and performances set forth below, the Parties agree as follows:

AGREEMENT

1. **Conveyance.** The District agrees to exchange an area of Parcel B to the City on the closing date for and in consideration of the City's conveyance to the District of an area of Parcel A, as shown on the attached **Exhibit B**.

2. **Boundary Line Adjustment.**

   i. The District shall submit to the City a proposed Boundary Line Adjustment (hereinafter referred to as "BLA") application for the adjustment of existing property boundaries, pursuant to VMC Chapter 20.310, prior to Closing. The District shall take commercially reasonable steps to facilitate approval of the BLA application to create the final parcel configuration as shown in **Exhibit B.**

   ii. The District's failure to obtain BLA approval shall not be a default under this Agreement, unless such failure results from District's failure to use commercially reasonable efforts to file the BLA application and pursue BLA approval.

3. **Exchange Value.** The Parties agree that the fair market value of the exchanged areas of Parcel A and Parcel B are reasonably equivalent and each exchanged parcel is deemed to be fair and reasonable consideration for the other.

4. **Grant of Easement.**

   i. The District conveys and quit claims to the City a perpetual and nonexclusive easement for ingress, egress and access (the "Easement") over and across portions of the District's property and around the perimeter of parcels legally described in the attached **Exhibit B.** The easement is granted, for the use of the City, invitees, guests and others of the general public, the right to come on the premises to utilize the easement, it being the intention of the Parties that such persons have free access to, upon, and over the easement for ingress and egress purposes.

   ii. The City shall not use or allow the use of the Easement Area for any use other than as specifically granted under this Agreement, unless otherwise agreed to in writing by the Parties, including but not limited to erecting improvements or allowing any other structures, fixtures, or items to block or otherwise create a physical barrier within the Easement Area. The City shall not take any action that would impair the District or District's authorized users' ability to traverse the easement area.

   iii. The District, its successors, assigns, employees, contractors, agents, guest, invitees, and permittees reserves the right to use the Easement Area for any purpose not inconsistent with the rights granted herein, including but not limited to, ingress, to egress from and access to the District's property.

5. **Condition of Title.**

   i. Title to the exchanged area of Parcel A shall be conveyed by the City to the District free of encumbrances or defects except: 1) existing easements not inconsistent with the District's intended use; and 2) building or zoning regulations or restrictions.

   ii. Title to exchanged area of Parcel B shall be conveyed by the District to the City free of encumbrances or defeats except: 1) existing easements not inconsistent with City's intended use; and 2) building or zoning regulations or restrictions.

   iii. Each Party shall be required to pay and discharge all monetary encumbrances against their respective parcels prior to the closing date.

6. **Conveyance of Title.** Title to each exchanged area shall be conveyed by statutory warranty deed, free of encumbrances or defects except those disclosed as general exceptions and standard special exceptions.

7. **Possession.** Shall occur at the official approval of the building permit by the City.

8. **Property Conveyed As Is.** Both Parties offer to convey their respective parcels in their "as is" condition, except as provided in Section 9 (Restoration). Neither Party makes any representations or warranties of any kind regarding the condition of the land or any improvement thereon. Without, in any way, limiting the generality of the directly preceding sentence, the Parties make no representation or warranties regarding the condition of either parcel or suitability for the intended development purposes. Notwithstanding the foregoing, both Parties represent and warrant that to the best of their knowledge, without inquiry or investigation, there are no hazardous or dangerous substances on, under, around or released from their respective parcels and/or improvement (if any) thereon.

9. **Restoration.** The District, through separate agreement with its contractor, agrees to restore the exchanged portion of Parcel B to a condition consistent with the City's intended use for a neighborhood park, including restoration of lawn, sidewalk, landscaping and tree work, replacement/relocation of the impacted picnic table and irrigation installation.

10. **Interlocal Agreement.** Upon closing, if necessary, the Parties mutually agree to amend the interlocal agreement, dated June 12, 2000, between the City of Vancouver and the Vancouver School District No. 37 for the development, public use and maintenance of the property at the Vancouver School of Arts and Academics.

11. **Closing.** The property exchange shall close within thirty (30) days of the second Party's approval of this agreement, provided however, closing shall occur on or before December 31, 2020 (the "closing date" or "closing").

12. **Costs and Expenses.** Except as expressly provided for herein, each Party shall be responsible for payment of their own costs and expenses incurred in conjunction with this transaction.

13. **Assignment.** This Agreement may not be assigned without the prior written consent of the other Party.

14. **Entire Agreement.** This Agreement supersedes any and all agreements between the Parties hereto regarding the subject property which are prior to the time of this Agreement. Neither the City nor the District shall be bound by any statement, understanding, agreement, promise, representation or stipulation, express or implied, that is not expressly stated herein.

15. **Conduct Before Closing.** Between the date of this Agreement and the closing date, the Parties shall each maintain the parcels in good condition and repair.

16. **Time.** Time is of the essence in fulfilling and effectuating the terms of this Agreement.

VANCOUVER SCHOOL DISTRICT

_____
Signature Date

_____
Printed Name/Title

Approved as to Form:

_____
Marilee Scarbrough, General Counsel
Vancouver School District

CITY OF VANCOUVER

_____
Signature Date

_____
Printed Name/Title

Approved as to Form:

_____
Jonathan Young, Attorney
Vancouver, Washington